Appendix I
(Clause E6 of *additional conditions of contract*)

Specimen Employment Contract

Please read the notes overleaf and then complete the contract properly before providing photocopies for execution by the Employer and the Employee.

Please put a ✓ in the appropriate box.
* (Please delete as appropriate.)
** (If the Employee is required to work at the construction site of the Main Contractor who hires his Employer, details about the Main Contractor must be provided in the supplementary notes.)
*** (Wages shall be referred to those as defined under section 2 of the Employment Ordinance (Cap. 57). All remuneration, earnings, allowances, etc. payable to the Employee in respect of work to be done under this employment contract, including but not limited to, basic wages, allowances, overtime pay and bonuses, regardless of their payment being made on a periodic or milestone basis, shall be stated with details of criteria and calculation of payment.)

Simplified Employment Contract (No:)

This contract of employment is entered into between _____ (hereinafter referred to as 'Employer') _____ (address and telephone number of the Employer) and * Mr / Mrs / Ms _____ (hereinafter referred to as 'Employee') on _____ (Please enter the date) [on] [with] the terms and conditions of employment set out below :

1. **Commencement of Employment** Effective from _____ (Please enter the date)
   - ☐ until either party terminates the contract
   - ☐ for a fixed term contract for a period of _____ *day(s) /month(s) /year(s), ending on _____ .

2. **Probation Period** ☐ No / ☐ Yes _____* day(s) /month(s)

3. **Position Employed** _____ 4. **Place of Work**** _____

5. **Working Hours** From _____ hours to _____ hours (_____ days per week)

6. **Wages*****

   - ☐ Basic wages# $ _____ per * day / month
     (# can make reference to the standard wage rates of the respective construction trade where available)

   - ☐ Piece-works/Others:_____
     (details of criteria and calculation of payment, if any)

   - ☐ Basic wages: $ _____ per * day / month; and

Piece-works/Others:_____
(details of criteria and calculation of payment, if any)
(Choose one of the above three options)

☐ Bonus(es) and others _____
(details of criteria and calculation of payment, if any)

☐ Other allowance(s) _____
(details of criteria and calculation of payment, if any)

Overtime pay ☐ At the rate of $ _____ * per hour / day / job
☐ At the rate according to * 1 / 1.5 / 2 times of normal wages

Payment of wages & Wage period(s)	Payment of wages	Wage Period(s)
	☐ every day	each day
	☐ every month on the __ day of the month	From the __ day of *the preceding month / the month to the __ day of *the preceding month / the month (both dates inclusive)
	☐ Twice monthly on	
	(i) the __ day and	(i) From the __ day of *the preceding month / the month to the __ day of *the preceding month / the month (both dates inclusive)
	(ii) the __ day of the month	(ii) From the __ day of *the preceding month / the month to the __ day of the month (both dates inclusive)

In accordance with the Employment Ordinance, wages shall become due on the expiry of the last day of the wage period and shall be paid as soon as practicable but in any case not later than 7 days thereafter.

7. **Termination of Employment Contract** A notice period of _____ * day(s) / month(s) or an equivalent amount of wages in lieu of the notice period.
☐ During the probation period of _____ * day(s) / month(s), no notice or wages in lieu of notice are required whereas a notice period of _____* day(s) / month(s) or an equivalent amount of wages for the notice period is to be given after the first month.

8. **Annuity** ☐ No ☐ Yes: (i) An amount equal to _____ month's/months' *basic / normal wages upon completion of each * calendar / lunar year.
(ii) Payment is to be made on _____.

9. **Mandatory Provident Fund Scheme**

According to the Mandatory Provident Fund Schemes Ordinance (the Ordinance), other than exempt persons, the employers must make arrangement for employees aged 18 or above and below 65 to join a registered Mandatory Provident Fund Scheme (the Scheme). When the employee has been enrolled in the Scheme, as required under the Ordinance, the employer must deduct from the employee's income as the employee's mandatory contribution and pay the employer's contribution from the employer's own funds to the Scheme. As required under the Ordinance, an Employer shall make employer's contributions timely to the Scheme for his employee's benefit.

For the purposes of the Ordinance, 'casual employees' refers to relevant employees who are employed in the catering and construction industries on a day-to-day basis or for a fixed period of less than 60 days.

The employee *is / is not a casual employee for the purposes of the Ordinance.

10. **Autopay**

Payment of wages and annuity, if any, are to be made via autopay through the Employer's designated bank. The Employee may open an account with the Employer's designated bank or any other bank for the purpose of this [autopay] [Clause].

11. **Holidays and Leave**

Under the Employment Ordinance and the Employees' Compensation Ordinance, the Employee, if eligible, is entitled to statutory holidays, paid annual leave, sickness allowance, maternity leave, rest days etc and other rights or protection.

12. **Work Arrangements during Typhoon and Rainstorm**

The Employee *is / is not required to work when typhoon signal no.8 or above is issued. The wage rate is calculated as: _____.
The Employee is required to resume duty if the typhoon signal no.8 is cancelled not less than _____ hours before end of working hours.
The Employee *is / is not required to work when black rainstorm warning is issued. The wage rate is calculated as: _____.
The Employee is required to resume duty if the black rainstorm warning is cancelled not less than _____ hours before end of working hours.
For guidance concerning other arrangements, please refer to the 'Code of Practice in Times of Typhoons and Rainstorms' issued by the Labour Department.

13. **Others**

In the event of wage arrears, the Employee is required to notify and report to the Labour Relations Officer on site within 7 working days (excluding Sundays and public holidays) upon the incidence to safeguard his interests.

This contract in duplicate consists of ____ pages. The Employer and the Employee hereby declare that they understand thoroughly the above provisions and further agree to sign to abide by such provisions.

Both Employer and the Employee shall each retain a copy of this contract for future reference.

Chop of the Company（if applicable）

_____

Signature of Employee		Signature of Employer or Employer's Representative	
	_____		_____
Name :	_____	*Name/Position held :	_____
HKID No :	_____	HKID No :	_____
Date :	_____	Date :	_____
Correspondence :	_____	Correspondence :	_____
Address	_____	Address	_____
	_____		_____
	_____		_____
Telephone No :	_____	Telephone No :	_____

Supplementary Notes
Information of Main Contractor

Name and address of Main Contractor (Please fill in information of the Main Contractor if the Employee is required to work at the construction site of the Main Contractor who hires his Employer):

(i)_____

_____

Project name and site: _____

_____

Project Commencement Date and Project number (if any): _____

(ii)_____

_____

Project name and site:_____

Project Commencement Date and Project number (if any):_____

(iii)_____

_____

Project name and site: _____

Project Commencement Date and Project number (if any): _____

Notes about Personal Data

Purpose of Collection

(1) The personal data provided by means of this Employment Contract by the Employee and obtained from the Construction Workers Registration System of the Construction Industry Council will be used for the following purposes:-

(a) regulating fair terms of employment;
(b) monitoring and controlling payment of wages;
(c) recording and verifying Employee's attendance records;
(d) providing proper record for compensation for employment-related injury;
(e) ensuring proper Mandatory Provident Fund contribution;
(f) providing proper record for compensation for termination of this Employment Contract; and
(g) maintaining proper Employee's employment records

Classes of Transferees

(2) The personal data provided by means of this Employment Contract may be disclosed to :-

(i) Labour Relations Officer(s) on the construction site;

(ii) personnel in relevant Government Bureaux/Departments handling matters in relation to the above purposes but not limiting to Labour Department and Immigration Department;

(iii) Mandatory Provident Fund Schemes Authority;

(iv) Approved trustees by Mandatory Provident Fund Schemes Authority;

(v) Construction Industry Council;

(vi) the officers operating and maintaining the card reading devices on site;

(vii) the Employer of the Project;

(viii) the Engineer/Architect appointed by the Employer of the Project and the Engineer/Architect's Representatives and

(ix) the Main Contractor and the major sub-contractors of the Project

for the purposes mentioned in paragraph (1) above.

Consequences

(3) The collection of the aforementioned personal data is obligatory and will be used for the purposes mentioned in paragraph (1) above. The consequences of the Employee's failure to provide the data may result in the Employee's rights being prejudiced in any future employment disputes with the Employer and that the Employee's access to the construction site may be denied.

Access to Personal Data and Enquiries

(4) Under the Personal Data (Privacy) Ordinance, Employees have the right to request access to or correction of the personal data provided to the Employer. Employees can contact _____

_____

(Name and Address)

僱傭合約樣本

請先閱讀合約附註及有關說明並填妥合約後影印，然後由僱傭雙方簽署作實。
請在適當的方格內填上✓號。
* （請將不適用者刪去。）
** （如僱員在僱主所屬的大判工程地點工作，必須於附註內填寫有關總承判商(大判)的資料。）
***（工資應參照僱傭條例（第57章）第2條的有關釋義。所有付給僱員作為該僱員根據其僱傭合約所將要做的工作而能以金錢形式表示的所有報酬、收入、津貼等，不論是按時或按工作里程碑支付，均應註以詳細說明支付條件、計算方法等。此等報酬、收入、津貼等包括並不限於基本薪金、津貼、超時工作工資和獎金。）

簡易僱傭合約（編號：　　）

本僱傭合約由 _____（以下簡稱「僱主」）
_____（「僱主」地址及電話）
與 _____*先生/ 女士（以下簡稱「僱員」)於_____
_____(請填上日期)訂立，雙方同意遵守下列僱傭條款：

1. **受僱日期**　由 _____起生效（請填上日期）
   ☐ 直至任何一方終止合約為止。
   ☐ 定期合約，為期_____*天/月/年，至_____年___月___日止。

2. **試用期**　☐ 無 ☐ 有，試用期為 _____* 天/ 月

3. **受僱職位**　_____　4. **工作地點**** _____

5. **工作時間**　每天由 _____時至 _____時　(每星期 _____天)

6. **工資*****

   ☐ 基本工資#：　每 *天／月$ _____
   （#可參考相關工種的行業標準工資（如有））

   ☐ 件工／其他： _____
   (請詳細說明支付條件、計算方法等)

   ☐ 基本工資： 每 *天／月 $ _____； 及
   件工／其他： _____

(請詳細說明支付條件、計算方法等)

(以上三項選擇其中一項)

☐ 獎金及其他 _____
(請詳細說明支付條件、計算方法等)

☐ 其他津貼 _____
(請詳細說明支付條件、計算方法等)

超時工作工資 ☐ 工資按 * 每小時/每天/每件 $ _____ 計算
☐ 工資按正常工資 * 1 倍/ 1.5 倍/ 2 倍計算

支付工資及工資期	支付工資	工資期
	☐ 每日支付	每日
	☐ 於每月 _____日支付	由 *上一個/當月_____日起，直至 *上一個/當月_____日 (包括首尾兩天)
	☐ 每月兩次	
	(i) 於每月 _____日支付及	(i) 由 *上一個/當月____日起，直至 *上一個/當月_____日 (包括首尾兩天)
	(ii) 於每月 _____日支付	(ii) 由*上一個/當月____日起，直至當月_____日 (包括首尾兩天)

根據《僱傭條例》的規定，工資在工資期最後一天完結時即到期支付，須在切實可行範圍內盡快支付，但在任何情況下不得遲於工資期屆滿後7天支付。

7. **終止僱傭合約** 給予對方通知期為 ____*天/月，或支付對方相等於通知期工資的代通知金

☐ 試用期為 _____*天/月，試用期的第壹個月內，無需給予通知或代通知金，第壹個月後，通知期為 _____ *天/月，或支付對方相等於通知期的工資

8. **年終酬金** ☐ 無 ☐ 有： (i) 僱員每服務滿壹*公/農曆年，可領取___個月 *基本薪金/正常工資
(ii) 支付日期為 _____

9. **強制性公積金計劃** 根據《強制性公積金計劃條例》的規定，除獲豁免人士外，僱主必須安排18歲或以上至65歲以下的僱員登記成為強制性公積金計劃（簡稱「強積金計劃」）成員。在僱員登記成

為強積金計劃成員後，僱主必須從僱員入息中扣除法例規定的款額作為僱員的強制性供款部份，及用其本身的資金向該計劃作出僱主的強制性供款部份，並依照法例的規定準時為僱員向該計劃供款。

就《強制性公積金計劃條例》而言，「臨時僱員」指從事建造業或飲食業，及受僱於該等行業並由僱主按日僱用或僱用一段少於60日的固定期間的有關僱員。

就《強制性公積金計劃條例》而言，僱員 *屬/不屬 臨時僱員。

10. **銀行自動轉賬** 僱員的所有工資及年終酬金（如有）均由僱主安排在僱主指定銀行直接自動轉帳。僱員可選擇在僱主的指定銀行開設戶口或其他銀行開設戶口作自動轉賬用。

11. **假期福利** 按《僱傭條例》、《僱員補償條例》，僱員如符合有關規定，可享有法定假日、有薪年假、疾病津貼、產假和休息日等福利，及其他權益或保障。

12. **颱風或暴雨警告下工作安排**

當八號或以上風球生效時，僱員*需要/ 無需上班，工資計算方法是：_____
當八號或以上風球於下班前不少於 _____ 小時前取消，僱員需要上班。
當黑色暴雨警告生效時，僱員*需要/ 無需上班，工資計算方法是：_____
當黑色暴雨警告於下班前不少於 _____ 小時前取消，僱員需要上班。
有關其他安排請參照勞工處刊物「颱風及暴雨警告下的工作守則」為準。

13. **其他**

為保障僱員的利益，如有任何欠薪的問題，僱員必須在欠薪日起7個工作天內（星期日及公眾假期除外）向地盤的勞資關係主任滙報及備案。

此合約為一式兩份，共 張紙。僱主及僱員均清楚明白上述各項內容，並同意簽署作實。
雙方須各自保存合約壹份文本作日後參考之用。

公司印鑑（如適用）

_____

僱員簽署		僱主或其代表簽署	
	_____		_____
姓名	: _____	*姓名/名稱及職位	: _____
香港身份證號碼	: _____	香港身分證號碼	: _____
日期	: _____	日期	: _____
聯絡地址	: _____	聯絡地址	: _____
	_____		_____
	_____		_____
聯絡電話	: _____	聯絡電話	: _____

附註

總承判商（大判）資料

總承判商(大判)名稱及地址(如僱員在僱主所屬的大判工程地點工作，請填寫有關大判的資料):

(i)_____

_____

工程名稱及地點: _____

工程開展日期及工程編號 (如有): _____

(ii)_____

_____

工程名稱及地點: _____

工程開展日期及工程編號 (如有): _____

(iii)_____

_____

工程名稱及地點: _____

工程開展日期及工程編號 (如有): _____

個人資料的說明

收集目的

(1) 在本僱傭合約內僱員所提供的個人資料，以及從建造業議會的建造業工人註冊系統取得的資料，將作下列用途：
   (a) 規管公平的僱用條款；
   (b) 監察和管制工資的繳付；
   (c) 記錄和核實僱員的出勤記錄；
   (d) 為工傷賠償提供準確記錄；
   (e) 確保妥為繳付強制性公積金供款；
   (f) 為終止本僱傭合約而須繳付的賠償提供準確記錄；以及
   (g) 備存妥善的僱員就業記錄。

獲轉交資料的部門和人士

(2) 僱主或會向以下部門和人士披露僱員在本僱傭合約所提供的個人資料：
   (i) 駐工地的勞資關係主任；
   (ii) 處理與上述用途有關事宜的政府決策局／部門，不限於勞工處和入境事務處；
   (iii) 強制性公積金計劃管理局；

(iv) 獲強制性公積金計劃管理局核准的受託人；
(v) 建造業議會;
(vi) 在工地操作及維修讀卡裝置的操作人員；
(vii) 工程的僱主；
(viii) 工程的僱主所委派的工程師／建築師和工程師／建築師的代表；以及
(ix) 工程的總承建商和主要分包商。

以作上文第(1)段所述的用途。

後果

(3) 僱主必須收集上述個人資料，有關資料將會作上文第(1)段所述的用途。僱員如不提供上述資料，日後與僱主發生僱傭糾紛時，其權益可能會受損; 而僱員亦可能會被拒進入工地。

查閱個人資料及查詢

(4) 根據《個人資料(私隱)條例》，僱員有權要求查閱或更改已向僱主提供的個人資料。僱員可聯絡 _____
_____
_____。
（姓名及地址）